

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1605

By: Gise

AS INTRODUCED

An Act relating to schools; requiring certain federal funds to be used to provide free school meals to qualifying students; prohibiting schools from charging qualifying students for reduced price meals; allowing disbursement of funds in certain circumstances; allowing schools to use other authorized funds to provide free meals to qualifying students in certain circumstances; requiring the State Department of Education to report annually to the Legislature; prescribing report requirements; mandating an audit of child nutrition programs; defining terms; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3-119.2 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. Federal funds appropriated to the Department of Education for a child nutrition program shall be used to provide school breakfasts and lunches at no cost to each qualifying student.

B. A public school that serves a school breakfast or a school lunch as part of a child nutrition program shall not charge a

1 qualifying student a reduced price copayment for a school breakfast
2 or a school lunch.

3 C. 1. If necessary to comply with the requirements of this
4 section, the Department shall provide funds that have been disbursed
5 to the Department from the federal government for purposes of
6 funding child nutrition programs to each public school that serves a
7 school breakfast or a school lunch as part of a child nutrition
8 program to cover the cost of eliminating reduced price copayments as
9 required by subparagraph B of this section.

10 2. If federal funds appropriated to the Department for a child
11 nutrition program are insufficient to provide a school breakfast or
12 a school lunch at no cost under paragraph 1 of this subsection, the
13 Department shall use funds as authorized by law to provide a school
14 breakfast or a school lunch not initially covered by federal funds
15 under subsection A of this section or other funds as authorized by
16 law.

17 D. Annually by November 15, the Department of Education shall
18 report on and provide to the Legislature an overview of each child
19 nutrition program offered in public schools. The report shall
20 include without limitation:

21 1. The procedure for applying for free or reduced price meals
22 in public schools; and

23 2. The number of students who:

24 a. apply for free or reduced price meals,

- b. are accepted to receive free or reduced price meals,
- c. are denied from receiving free or reduced price meals,
- and
- d. automatically qualify for free or reduced price meals based on federal eligibility requirements;

E. The Oklahoma Legislative Office of Fiscal Transparency shall audit the State Department of Education Child Nutrition Programs by December 15, 2025, and report the audit findings to the Legislature. The audit shall determine whether each public school's participation in a child nutrition program effectively:

- 1. Serves the intent of the Legislature to expand students' access to free meals in public schools; and
- 2. Complies with federal and state laws and rules.

F. As used in this section:

1. "Child nutrition program" includes the following as established under the National School Lunch Act, 42 U.S.C., 1751 et seq.:

- a. the National School Lunch Program, or
- b. the School Breakfast Program, and

2. "Qualifying student" means a kindergarten through grade twelve (K-12) student enrolled in a public school who is eligible for receipt of a reduced price meal in a child nutrition program.

SECTION 2. This act shall become effective July 1, 2025.

SECTION 3. It being immediately necessary for the preservation
of the public peace, health or safety, an emergency is hereby
declared to exist, by reason whereof this act shall take effect and
be in full force from and after its passage and approval.

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